

HAMPTON V EBMUD, et al.

22CV46329

DEFENDANT URBAN PARK'S MOTION FOR LEAVE TO FILE RENEWED MOTION FOR SUMMARY JUDGMENT

This matter involves personal injuries sustained by Plaintiff Maxwell Hampton ("Plaintiff") while swimming in Lake Comanche. On August 18, 2023, the Court denied Defendant Urban Park (Defendant)'s motion for summary judgment/adjudication. Now before the Court is Defendant's motion for leave to file renewed motion for summary judgment.

The motion does not comply with Local Rule 3.3.7. All matters noticed for the Law & Motion calendar shall include the following language in the notice:

3.3.7 Tentative Rulings (Repealed Eff 7/1/06, As amended 1/1/18) All parties appearing on the Law and Motion calendar shall utilize the tentative ruling system. Tentative Rulings are available by 2:00 p.m. on the court day preceding the scheduled hearing and can be accessed either through the court's website or by telephoning 209-754-6285. The tentative ruling shall become the ruling of the court, unless a party desiring to be heard so advises the Court no later than 4:00 p.m. on the court day preceding the hearing including advising that all other sides have been notified of the intention to appear by calling 209-754-6285. Where appearance has been requested or invited by the Court, all argument and evidence is limited pursuant to Local Rule 3.3. All matters noticed for the Law & Motion calendar shall include the following language in the notice:

Pursuant to Local Rule 3.3.7, the Court will make a tentative ruling on the merits of this matter by 2:00 p.m. the court day before the hearing. The complete text of the tentative ruling may be accessed on the Court's website or by calling 209-754-6285 and listening to the recorded tentative ruling. If you do not call all other parties and the Court by 4:00 p.m. the court day preceding the hearing, no hearing will be held and the tentative ruling shall become the ruling of the court [emphasis in original.]

Failure to include this language in the notice may be a basis for the Court to

deny the motion.

Based on the foregoing, the Motion is **DENIED**, without prejudice to refile, if otherwise statutorily allowed.

The Clerk shall provide notice of the Ruling forthwith. No further formal Order Is required.

SANTELICES v TURNER, et al

24CV47361

DEFENDANT TURNER and FOUNTAINS' DISCOVERY MOTIONS

This civil action stems from a dispute over the destruction and burning of several trees on real property owned by Plaintiff Cynthia Santelices ("Plaintiff") by Defendants Dolores Turner ("Turner"), Kristeen B. Fountain ("Fountain"), Josh Noble ("Noble") and Noble Tree Service (collectively "Defendants".) Turner and Fountain filed a Cross-Complaint against Plaintiff and Noble and Noble Tree Service.

Before the Court are Defendants Turner and Fountain's four separate motions to compel discovery which ask the Court to: 1) deem admitted the truth of facts in the Request for Admissions ("RFA"), 2) compel answers to Requests for Production of Documents ("RPDs"), 3) compel responses to form interrogatories ("Form Interrogatories") and) compel responses to special interrogatories ("Special Interrogatories") (collectively "Discovery"), and 5) impose sanctions on Plaintiff.

The Court initially heard this matter on November 1, 2024, and continued the matter for three weeks after giving Plaintiff directions as to how discovery needed to be answered in an effort to balance equities, specifically ordering that:

Plaintiff is directed to submit verified responses to Defendant's RFAs, RPDs, Special Interrogatories and Form Interrogatories by 5:00 P.M. on November 8, 2024. Within one week of receipt of the responses, Defendants are to contact the Court to drop the hearing if they are satisfied with Plaintiff's final responses or, alternatively, to file a supplemental declaration attaching the responses and detailing the claimed continued shortcomings. The Court declines sanctions at this stage, noting Plaintiff has provided some portion of responses, and this matter could have been resolved informally without court involvement; if the matter remains on calendar for November 22, 2024, the Court will revisit the issue of sanctions.

Based on Defendants' declaration filed on November 15, 2024, there are continued claimed shortcomings in plaintiff's discovery responses.

I. Factual and Procedural Background

A. Background Facts

Plaintiff is the owner of a ten-acre parcel of real property in Calaveras County with Assessor's Parcel Number (APN) #004-006-010-000 ("Property"). (FAC ¶ 6.); the